IN THE CIRCUIT COURT OF THE STATE OF OREGON

FOR THE COUNTY OF BAKER

STATE OF OREGON, Plaintiff, vs. _____, Defendant.	)))))))))	Case Number: _____ **Criminal Subpoena**

TO: _____

IN THE NAME OF THE STATE OF OREGON: You hereby are commanded to appear before the Circuit Court of the State of Oregon for the County of Baker at the county court house in the city of Baker City, in said county, on the _____ day of _____, 20__, at _____ o'clock ___.m. of said day as a witness in a criminal action prosecuted by the State of Oregon against _____ on behalf of defendant.

You are commanded to bring with you * _____
_____.

WITNESS my name and the seal of said court affixed at Baker City, Oregon, the _____ day of _____, 20__.

**Issued by: Amy Swiger
Trial Court Administrator

By: _____

Note: Failure to use this form in compliance with ORCP 55 may affect or nullify its validity.

* If applicable, list books, papers, documents, or tangible things. If any items are listed the word DUCES TECUM should be added to the title of this subpoena, i.e, CRIMINAL SUBPOENA DUCES TECUM.

** A subpoena may be issued in blank by the clerk of the court in which the action is pending, or if there is no clerk, then by a judge or justice of such court, or it may be issued by an attorney of records of the party to the action in whose behalf the witness is required to appear. See ORCP 55C(1).

I HEREBY CERTIFY that the foregoing is a true copy of the original subpoena in the within entitled action now in my hands for service.

By: _____

Proof of Service made by person other than Sheriff.
STATE OF OREGON, County of _____ ss.
I, _____,
being first duly sworn, depose and say that the within subpoena was delivered to me for service on _____, 20____; that I served the same within the county and state aforesaid on the _____ day of _____, 20__ on the within named _____ by delivering to him personally a copy thereof and giving or offering to him at the same time the fees (named below) to which he is entitled for travel to and from the place designated in said subpoena and one day's attendance: that I am a competent person over the age of 18 years.

_____

Subscribed and sworn to before me this _____ day of _____, 20___.

_____ (seal)
Notary Public for Oregon/ Court Clerk
My commission expires _____

Proof of Service if made by Sheriff.
STATE OF OREGON, County of _____ ss.
I, hereby certify that the within subpoena was delivered to me for service on _____, 20____; that I served the same within the county and state aforesaid on the _____ day of _____, 20__ on the within named _____ by delivering to him personally a copy thereof and giving or offering to him at the same time the fees (named below) to which he is entitled for travel to and from the place designated in said subpoena and one day's attendance.

_____
Title

By: _____
Deputy

Witness Fees .....$_____
Mileage .....$_____
Paid by ....._____